SALIENT FEATURES OF THE CONSTITUTION

- Introductory Points
  - Nature and Evolution of the Constitution
    - Indian Constitution is unique in its content and spirit[cite: 3]
    - Though borrowed from many Constitutions, it has highly distinctive features[cite: 3]
    - Several original features of 1949 have been substantially changed through amendments (including 7th, 42nd, 44th, 73rd, 74th, 97th, and 101st Amendments)[cite: 3]
    - 42nd Amendment Act, 1976 is widely known as the "Mini-Constitution" due to its massive changes[cite: 3]
    - Basic Structure Limitation (Kesavananda Bharati Case, 1973): Supreme Court ruled that Parliament's constituent power under Article 368 cannot be used to alter or destroy the basic structure of the Constitution[cite: 3]
  - Current Numerical Framework (as of 2019)
    - Contains a Preamble, ~470 Articles divided into 25 Parts, and 12 Schedules[cite: 3]
    - Cumulative Changes:
      - Deleted: 20 Articles and 1 Part (Part VII)[cite: 3]
      - Added: ~95 Articles, 4 Parts (IVA, IXA, IXB, and XIV-A), and 4 Schedules (9, 10, 11, and 12)[cite: 3]
    - Holds the distinction where no other Constitution in the world contains so many articles and schedules[cite: 3]
  - Factors Contributing to Elephantine Length
    - Geographical Factors: India's vastness and diversity[cite: 3]
    - Historical Factors: The massive influence of the Government of India Act, 1935 (which was itself very bulky)[cite: 3]
    - Political Factors: Having a single Constitution for both the Centre and the States (except erstwhile J&K)[cite: 3]
    - Constituent Assembly Composition: The absolute dominance of legal experts in the Assembly[cite: 3]
    - Content Structure: Inclusion of detailed administrative details alongside fundamental principles, which are left to conventions in other nations[cite: 3]
- Salient Features of the Constitution
  - 1. Lengthiest Written Constitution[cite: 3]
    - Constitutions are classified into Written (like the USA) and Unwritten (like Britain)[cite: 3]
    - The Indian Constitution is the longest written Constitution in the world[cite: 3]
    - Original Structure (1949): Contained a Preamble, 395 Articles (grouped in 22 Parts), and 8 Schedules[cite: 3]
  - 2. Drawn from Various Sources[cite: 3]
    - Framed after "ransacking all known Constitutions" (Dr. B.R. Ambedkar)[cite: 3]
    - Structural Part: Derived heavily from the Government of India Act, 1935[cite: 3]
    - Philosophical Part:
      - Fundamental Rights: Inspired by the American Constitution[cite: 3]
      - Directive Principles of State Policy (DPSPs): Inspired by the Irish Constitution[cite: 3]
    - Political Part: The principles of Cabinet Government and executive-legislature relations are derived from the British Constitution[cite: 3]
    - Other Sources: Canada, Australia, Germany, USSR, France, South Africa, and Japan[cite: 3]
    - Influence of GOI Act 1935: More than half of the provisions are identical or close to the 1935 Act, including the Federal Scheme, Judiciary, Governors, Emergency Powers, Public Service Commissions, and administrative details[cite: 3]
  - 3. Blend of Rigidity and Flexibility[cite: 3]
    - Rigid Constitution: Requires a special procedure for its amendment (e.g., USA)[cite: 3]
    - Flexible Constitution: Can be amended in the same manner as ordinary laws (e.g., Britain)[cite: 3]
    - Indian Synthesis: Neither rigid nor flexible, but a synthesis of both[cite: 3]
    - Article 368 Amendment Channels:
      - Special Majority: Passed by 2/3rd of members present and voting AND a majority of the total membership of each House[cite: 3]
      - Special Majority + State Ratification: Special majority in Parliament plus ratification by at least half of the state legislatures[cite: 3]
    - Simple Majority Amendments: Certain provisions can be amended by a simple majority of Parliament; these explicitly do not fall under Article 368[cite: 3]
  - 4. Federal System with Unitary Bias[cite: 3]
    - Federal Features: Two governments, division of powers, written Constitution, supremacy of the Constitution, rigidity, independent judiciary, and bicameralism[cite: 3]
    - Unitary/Non-Federal Features: Strong Centre, single Constitution, single citizenship, flexibility of the Constitution, integrated judiciary, Governor appointed by the Centre, All-India Services, and emergency provisions[cite: 3]
    - "Federation" Word Usage: The term "Federation" is nowhere used in the Constitution[cite: 3]
    - Article 1 Designation: Describes India as a "Union of States"[cite: 3]
      - Implications: The Indian Federation is not the result of an agreement by states, and no state has the right to secede from the Union[cite: 3]
    - Scholarly Classifications:
      - Quasi-federal: Termed by K.C. Wheare[cite: 3]
      - Bargaining federalism: Termed by Morris Jones[cite: 3]
      - Cooperative federalism: Termed by Granville Austin[cite: 3]
      - Federation with a centralising tendency: Termed by Sir Ivor Jennings[cite: 3]
  - 5. Parliamentary Form of Government[cite: 3]
    - Adopted the British Parliamentary System rather than the American Presidential System[cite: 3]
    - Emphasizes cooperation and co-ordination between the legislative and executive organs[cite: 3]
    - Also referred to as the Westminster Model, Responsible Government, and Cabinet Government[cite: 3]
    - Exists at both the Centre and the States[cite: 3]
    - Key Features:
      - Presence of nominal and real executives[cite: 3]
      - Majority party rule[cite: 3]
      - Collective responsibility of the executive to the legislature[cite: 3]
      - Double Membership: Ministers are mandatory members of the legislature[cite: 3]
      - Leadership of the Prime Minister at the Centre and Chief Minister in States[cite: 3]
      - Dissolution of the lower house (Lok Sabha / Legislative Assembly)[cite: 3]
    - Differences from the British Model:
      - The Indian Parliament is not a sovereign body (unlike the British Parliament)[cite: 3]
      - India has an elected head of state (republican President), while Britain has a hereditary monarch[cite: 3]
    - Dominance of PM: Due to the immense power of the Prime Minister, it is often termed "Prime Ministerial Government"[cite: 3]
  - 6. Synthesis of Parliamentary Sovereignty & Judicial Supremacy[cite: 3]
    - Synthesis of British Parliamentary Sovereignty and American Judicial Supremacy[cite: 3]
    - Scope of Judicial Review: Narrower in India compared to the USA[cite: 3]
      - The US Constitution is based on "due process of law"[cite: 3]
      - The Indian Constitution is based on "procedure established by law" under Article 21[cite: 3]
    - Balanced Scheme:
      - The Supreme Court can declare parliamentary laws unconstitutional through judicial review[cite: 3]
      - Parliament can amend the major parts of the Constitution through its constituent power under Article 368[cite: 3]
  - 7. Integrated and Independent Judiciary[cite: 3]
    - Integrated Hierarchy: Supreme Court at the apex, High Courts at the state level, and subordinate courts (district and lower courts) below them[cite: 3]
    - Single Enforcement System: A single system of courts enforces both Central and State laws, unlike the USA where federal laws are enforced by federal courts and state laws by state courts[cite: 3]
    - Supreme Court Status: Serves as the federal court, the highest court of appeal, the guarantor of Fundamental Rights, and the guardian of the Constitution[cite: 3]
    - Judicial Independence Safeguards:
      - Security of tenure for judges[cite: 3]
      - Fixed service conditions[cite: 3]
      - Expenses charged on the Consolidated Fund of India[cite: 3]
      - Ban on discussion of judges' conduct in legislatures[cite: 3]
      - Ban on practice after retirement[cite: 3]
      - Power to punish for contempt of court[cite: 3]
      - Separation of judiciary from the executive under Article 50[cite: 3]
  - 8. Fundamental Rights[cite: 3]
    - Enshrined in Part III[cite: 3]
    - Six Fundamental Rights (originally seven; the Right to Property [Article 31] was repealed by the 44th Amendment Act, 1978):[cite: 3]
      - Right to Equality (Articles 14–18)[cite: 3]
      - Right to Freedom (Articles 19–22)[cite: 3]
      - Right against Exploitation (Articles 23–24)[cite: 3]
      - Right to Freedom of Religion (Articles 25–28)[cite: 3]
      - Cultural and Educational Rights (Articles 29–30)[cite: 3]
      - Right to Constitutional Remedies (Article 32)[cite: 3]
    - Core Objectives: To promote political democracy and prevent authoritarian or despotic rule[cite: 3]
    - Character: They are justiciable and directly enforceable by courts; an aggrieved person can approach the SC to issue prerogative writs[cite: 3]
    - Qualified nature: Not absolute; subject to reasonable restrictions and can be amended or temporarily suspended during a National Emergency (except Articles 20 and 21)[cite: 3]
  - 9. Directive Principles of State Policy[cite: 3]
    - Located in Part IV of the Constitution; described by Ambedkar as a "novel feature"[cite: 3]
    - Classified into three broad categories: Socialistic, Gandhian, and Liberal-Intellectual[cite: 3]
    - Objectives: Aimed at establishing a welfare state and promoting social and economic democracy[cite: 3]
    - Nature: Non-justiciable; they are moral obligations on the State[cite: 3]
    - Minerva Mills Case (1980) Doctrine: The Constitution is built on the bedrock of the balance between Fundamental Rights and Directive Principles[cite: 3]
  - 10. Fundamental Duties[cite: 3]
    - Not present in the original Constitution; added by the 42nd Amendment Act, 1976 based on the Swaran Singh Committee recommendations[cite: 3]
    - 86th Amendment Act, 2002 added one more duty[cite: 3]
    - Structure: Enshrined in Part IVA under Article 51A, containing 11 duties[cite: 3]
    - Nature: Non-justiciable civic and moral duties inspired by the USSR Constitution[cite: 3]
  - 11. A Secular State[cite: 3]
    - The Constitution does not uphold any particular religion as the official state religion[cite: 3]
    - Secular word was added to the Preamble by the 42nd Amendment Act, 1976[cite: 3]
    - Key Secular Provisions:
      - Preamble guarantees liberty of belief, faith, and worship[cite: 3]
      - Article 14: Equality before the law for all[cite: 3]
      - Article 15: No discrimination on grounds of religion[cite: 3]
      - Article 16: Equal opportunity in public employment[cite: 3]
      - Article 25: Freedom of conscience, profession, practice, and propagation of religion[cite: 3]
      - Article 26: Freedom to manage religious affairs[cite: 3]
      - Article 27: No taxation for the promotion of any particular religion[cite: 3]
      - Article 28: No religious instruction in educational institutions wholly maintained by State funds[cite: 3]
      - Articles 29 & 30: Protection of language, script, culture, and minority educational institutions[cite: 3]
      - Article 44: State shall endeavour to secure a Uniform Civil Code[cite: 3]
    - Indian Concept of Secularism: A positive concept giving equal respect and state support to all religions, unlike the Western negative concept of complete separation[cite: 3]
    - Representation: Communal electorates were abolished, but reservations for SC/ST continue[cite: 3]
  - 12. Universal Adult Franchise[cite: 3]
    - Adopted as the basis of elections to the Lok Sabha and State Legislative Assemblies[cite: 3]
    - Voting Age: Reduced from 21 to 18 years by the 61st Constitutional Amendment Act, 1988[cite: 3]
    - Non-discrimination: Every citizen of age has the right to vote without discrimination based on caste, race, religion, sex, literacy, or wealth[cite: 3]
  - 13. Single Citizenship[cite: 3]
    - India has only single citizenship (Indian), unlike the USA/Switzerland where dual citizenship exists (national + state)[cite: 3]
    - Guarantees equal rights across the entire country, though communal, caste, and linguistic conflicts still occur[cite: 3]
  - 14. Independent Bodies[cite: 3]
    - Establishes several independent bodies as bulwarks of the democratic system:[cite: 3]
      - Election Commission: Ensures free and fair elections to Parliament, State Legislatures, and offices of President and Vice-President[cite: 3]
      - Comptroller and Auditor General (CAG): Audits Union and State accounts; acts as the guardian of the public purse[cite: 3]
      - Union Public Service Commission (UPSC): Conducts examinations for recruitment to All-India and Central services; advises the President on disciplinary matters[cite: 3]
      - State Public Service Commission (SPSC): Conducts recruitment to state services; advises the Governor[cite: 3]
    - Independence Safeguards: Ensured by security of tenure, fixed service conditions, and expenses charged directly on the Consolidated Fund[cite: 3]
  - 15. Emergency Provisions[cite: 3]
    - Enables the President to meet abnormal situations effectively[cite: 3]
    - Three Types of Emergencies:
      - National Emergency (Article 352): Imposed on grounds of war, external aggression, or armed rebellion[cite: 3]
      - President's Rule / State Emergency (Articles 356 & 365): Imposed due to failure of constitutional machinery or failure to comply with Centre's directions[cite: 3]
      - Financial Emergency (Article 360): Imposed due to threat to the financial stability or credit of India[cite: 3]
    - Structural Transformation: Converts the federal polity into a unitary one without a formal constitutional amendment[cite: 3]
  - 16. Three-tier Government[cite: 3]
    - Originally provided a dual polity (Centre and States)[cite: 3]
    - Added a third tier of local government through the 73rd and 74th Amendment Acts, 1992[cite: 3]
    - Panchayats (73rd Amendment): Constitutionalized rural local bodies by adding Part IX and Schedule 11[cite: 3]
    - Municipalities (74th Amendment): Constitutionalized urban local bodies by adding Part IXA and Schedule 12[cite: 3]
  - 17. Co-operative Societies[cite: 3]
    - Added by the 97th Constitutional Amendment Act, 2011[cite: 3]
    - Three Major Changes:
      - Right to form co-operative societies made a Fundamental Right under Article 19(1)(c)[cite: 3]
      - Added DPSP Article 43B for the promotion of co-operative societies[cite: 3]
      - Inserted a new Part IXB (Articles 243ZH to 243ZT) to ensure democratic, autonomous, and professional functioning[cite: 3]
- Criticism of the Constitution
  - 1. Borrowed Constitution / Bag of Borrowings[cite: 3]
    - Criticised as a "patchwork" and "bag of borrowings"[cite: 3]
    - Ambedkar's Defense: A written constitution created late in history is bound to have similarities; the provisions were modified to suit Indian conditions and avoid blind copying[cite: 3]
  - 2. Carbon Copy of the 1935 Act[cite: 3]
    - Critics claimed it reproduced a massive number of provisions from the Government of India Act, 1935[cite: 3]
    - Observations:
      - N. Srinivasan: The Constitution is "both in language and substance a close copy of the Act of 1935"[cite: 3]
      - Sir Ivor Jennings: It derives directly from the 1935 Act, copying many provisions almost textually[cite: 3]
      - P.R. Deshmukh: It is essentially the 1935 Act with adult franchise added[cite: 3]
    - Ambedkar's Response: There is no shame in borrowing, and no one holds a patent over constitutional ideas; the copied parts mostly relate to detailed administrative machinery[cite: 3]
  - 3. Un-Indian or Anti-Indian[cite: 3]
    - Criticised as unsuitable and unworkable for India because it does not reflect local traditions[cite: 3]
    - Key Statements:
      - K. Hanumanthaiya: "We wanted the music of Veena or Sitar, but here we have the music of an English band."[cite: 3]
      - Lokanath Misra: Described the Constitution as a "slavish imitation of the West"[cite: 3]
  - 4. An Un-Gandhian Constitution[cite: 3]
    - Criticised for not incorporating the ideals of Mahatma Gandhi, particularly the structure of village and district panchayats[cite: 3]
    - K. Hanumanthaiya: Clarified that this is exactly the kind of Constitution Gandhi did not want or envisage[cite: 3]
    - T. Prakasam: Attributed this lack of Gandhian philosophy to Ambedkar's non-participation in the Gandhian movement and antagonism toward his ideas[cite: 3]
  - 5. Elephantine Size[cite: 3]
    - Criticised as too bulky and detailed[cite: 3]
    - Sir Ivor Jennings: Noted that the borrowed provisions were not always well-selected and that the document is far too long[cite: 3]
    - H.V. Kamath: Pointed out that since the emblem of the Assembly was an elephant, it is natural that the Constitution is the bulkiest the world has produced[cite: 3]
  - 6. Paradise of the Lawyers[cite: 3]
    - Criticised as too legalistic and drafted in highly complex legal language[cite: 3]
    - Sir Ivor Jennings: Famously coined the term "lawyer's paradise"[cite: 3]
    - H.K. Maheswari: Claimed the draft would make people more litigious and open up endless avenues for court cases[cite: 3]
    - P.R. Deshmukh: Noted that the text contains too much padding and verbiage, when it should have been a simple socio-political document[cite: 3]
- TABLE 3.1 – Constitution of India at a Glance
  - Parts of the Constitution and Covered Articles[cite: 3]
    - Part I: The Union and its Territory (Articles 1–4)[cite: 3]
    - Part II: Citizenship (Articles 5–11)[cite: 3]
    - Part III: Fundamental Rights (Articles 12–35)[cite: 3]
    - Part IV: Directive Principles of State Policy (Articles 36–51)[cite: 3]
    - Part IVA: Fundamental Duties (Article 51A)[cite: 3]
    - Part V: The Union Government (Articles 52–151)[cite: 3]
      - Chapter I: Executive (Articles 52–78)[cite: 3]
      - Chapter II: Parliament (Articles 79–122)[cite: 3]
      - Chapter III: Legislative Powers of President (Article 123)[cite: 3]
      - Chapter IV: Union Judiciary (Articles 124–147)[cite: 3]
      - Chapter V: Comptroller & Auditor General of India (Articles 148–151)[cite: 3]
    - Part VI: State Governments (Articles 152–237)[cite: 3]
      - Chapter I: General (Article 152)[cite: 3]
      - Chapter II: Executive (Articles 153–167)[cite: 3]
      - Chapter III: State Legislature (Articles 168–212)[cite: 3]
      - Chapter IV: Legislative Powers of Governor (Article 213)[cite: 3]
      - Chapter V: High Courts (Articles 214–231)[cite: 3]
      - Chapter VI: Subordinate Courts (Articles 233–237)[cite: 3]
    - Part VII: States in Part B of First Schedule (Article 238 - Deleted)[cite: 3]
    - Part VIII: Union Territories (Articles 239–242)[cite: 3]
    - Part IX: Panchayats (Articles 243–243O)[cite: 3]
    - Part IXA: Municipalities (Articles 243P–243ZG)[cite: 3]
    - Part IXB: Co-operative Societies (Articles 243ZH–243ZT)[cite: 3]
    - Part X: Scheduled & Tribal Areas (Articles 244–244A)[cite: 3]
    - Part XI: Relations between Union & States (Articles 245–263)[cite: 3]
      - Legislative Relations (Articles 245–255)[cite: 3]
      - Administrative Relations (Articles 256–263)[cite: 3]
    - Part XII: Finance, Property, Contracts & Suits (Articles 264–300A)[cite: 3]
      - Finance (Articles 264–291)[cite: 3]
      - Borrowing (Articles 292–293)[cite: 3]
      - Property & Contracts (Articles 294–300)[cite: 3]
      - Right to Property (Article 300A)[cite: 3]
    - Part XIII: Trade, Commerce & Intercourse within India (Articles 301–307)[cite: 3]
    - Part XIV: Services under Union & States (Articles 308–323)[cite: 3]
      - Services (Articles 308–314)[cite: 3]
      - Public Service Commissions (Articles 315–323)[cite: 3]
    - Part XIV-A: Tribunals (Articles 323A–323B)[cite: 3]
    - Part XV: Elections (Articles 324–329A)[cite: 3]
    - Part XVI: Special Provisions Relating to Certain Classes (Articles 330–342A)[cite: 3]
    - Part XVII: Official Language (Articles 343–351)[cite: 3]
      - Language of the Union (Articles 343–344)[cite: 3]
      - Regional Languages (Articles 345–347)[cite: 3]
      - Language of Supreme Court, High Courts, etc. (Articles 348–349)[cite: 3]
      - Special Directives (Articles 350–351)[cite: 3]
    - Part XVIII: Emergency Provisions (Articles 352–360)[cite: 3]
    - Part XIX: Miscellaneous (Articles 361–367)[cite: 3]
    - Part XX: Amendment of Constitution (Article 368)[cite: 3]
    - Part XXI: Temporary, Transitional & Special Provisions (Articles 369–392)[cite: 3]
    - Part XXII: Short Title, Commencement, Authoritative Text in Hindi and Repeals (Articles 393–395)[cite: 3]
  - Key Amendments affecting constitutional Parts[cite: 3]
    - 7th Amendment (1956): Deleted Part VII[cite: 3]
    - 42nd Amendment (1976): Added Part IVA[cite: 3]
    - 74th Amendment (1992): Added Part IXA[cite: 3]
    - 97th Amendment (2011): Added Part IXB[cite: 3]
- TABLE 3.2 – Important Articles at a Glance
  - Articles 1 to 51A[cite: 3]
    - Article 1: Name & territory of the Union[cite: 3]
    - Article 3: Formation of new states & alteration of areas, boundaries, or names[cite: 3]
    - Article 13: Laws inconsistent with or in derogation of Fundamental Rights[cite: 3]
    - Article 14: Equality before law & equal protection of laws[cite: 3]
    - Article 16: Equality of opportunity in public employment[cite: 3]
    - Article 17: Abolition of untouchability[cite: 3]
    - Article 19: Protection of six freedom rights[cite: 3]
    - Article 21: Protection of life & personal liberty[cite: 3]
    - Article 21A: Right to elementary education[cite: 3]
    - Article 25: Freedom of conscience & free profession, practice, and propagation of religion[cite: 3]
    - Article 30: Right of minorities to establish & administer educational institutions[cite: 3]
    - Article 31C: Saving of laws giving effect to certain Directive Principles[cite: 3]
    - Article 32: Remedies for enforcement of Fundamental Rights (Writs)[cite: 3]
    - Article 38: State to secure a social order for the promotion of welfare of the people[cite: 3]
    - Article 40: Organisation of village panchayats[cite: 3]
    - Article 44: Uniform Civil Code for the citizens[cite: 3]
    - Article 45: Provision for early childhood care and education[cite: 3]
    - Article 46: Promotion of educational and economic interests of SCs, STs, and other weaker sections[cite: 3]
    - Article 50: Separation of judiciary from executive[cite: 3]
    - Article 51: Promotion of international peace and security[cite: 3]
    - Article 51A: Fundamental Duties[cite: 3]
  - Articles 72 to 226[cite: 3]
    - Article 72: Power of President to grant pardons, reprieves, respites, or remissions[cite: 3]
    - Article 74: Council of Ministers to aid and advise the President[cite: 3]
    - Article 78: Duties of Prime Minister as respects the furnishing of information to President[cite: 3]
    - Article 110: Definition of Money Bills[cite: 3]
    - Article 112: Annual financial statement (Budget)[cite: 3]
    - Article 123: Power of President to promulgate ordinances during recess[cite: 3]
    - Article 143: Power of President to consult Supreme Court[cite: 3]
    - Article 155: Appointment of Governor by the President[cite: 3]
    - Article 161: Power of Governor to grant pardons, reprieves, respites, or remissions[cite: 3]
    - Article 163: Council of Ministers to aid and advise the Governor[cite: 3]
    - Article 167: Duties of Chief Minister as respects the furnishing of information to Governor[cite: 3]
    - Article 169: Abolition or creation of Legislative Councils in States[cite: 3]
    - Article 200: Assent to bills by the Governor[cite: 3]
    - Article 213: Power of Governor to promulgate ordinances during recess[cite: 3]
    - Article 226: Power of High Courts to issue certain writs[cite: 3]
  - Articles 239AA to 370[cite: 3]
    - Article 239AA: Special provisions with respect to Delhi[cite: 3]
    - Article 249: Power of Parliament to legislate with respect to a matter in the State List in the national interest[cite: 3]
    - Article 262: Adjudication of disputes relating to waters of inter-state rivers[cite: 3]
    - Article 263: Provisions with respect to an Inter-State Council[cite: 3]
    - Article 265: No tax shall be levied or collected except by authority of law[cite: 3]
    - Article 275: Grants from the Union to certain States[cite: 3]
    - Article 280: Provisions for the constitution of a Finance Commission[cite: 3]
    - Article 300: Suits and proceedings[cite: 3]
    - Article 300A: Persons not to be deprived of property save by authority of law (Right to Property)[cite: 3]
    - Article 311: Dismissal, removal, or reduction in rank of persons employed in civil capacities under the Union or a State[cite: 3]
    - Article 312: Provisions for All-India Services[cite: 3]
    - Article 315: Public Service Commissions for the Union and for the States[cite: 3]
    - Article 320: Functions of Public Service Commissions[cite: 3]
    - Article 323A: Administrative Tribunals[cite: 3]
    - Article 324: Superintendence, direction, and control of elections to be vested in an Election Commission[cite: 3]
    - Article 330: Reservation of seats for SCs and STs in the House of the People (Lok Sabha)[cite: 3]
    - Article 335: Claims of SCs and STs to services and posts[cite: 3]
    - Article 352: Proclamation of National Emergency[cite: 3]
    - Article 356: Provisions in case of failure of constitutional machinery in States (President's Rule)[cite: 3]
    - Article 360: Provisions as to Financial Emergency[cite: 3]
    - Article 365: Effect of failure to comply with, or to give effect to, directions given by the Union[cite: 3]
    - Article 368: Power of Parliament to amend the Constitution and procedure thereof[cite: 3]
    - Article 370: Temporary provisions with respect to the State of Jammu & Kashmir[cite: 3]
- TABLE 3.3 – Schedules of the Constitution
  - First to Sixth Schedules[cite: 3]
    - First Schedule: Contains names of States & UTs with their territorial extent; linked to Articles 1 and 4[cite: 3]
    - Second Schedule: Contains salaries, allowances, and privileges of:[cite: 3]
      - The President of India and Governors of States[cite: 3]
      - Speakers and Deputy Speakers of Lok Sabha & State Assemblies[cite: 3]
      - Chairmen and Deputy Chairmen of Rajya Sabha & State Legislative Councils[cite: 3]
      - Judges of the Supreme Court and High Courts[cite: 3]
      - Comptroller and Auditor-General of India (CAG)[cite: 3]
      - Linked to Articles 59, 65, 75, 97, 125, 148, 158, 164, 186, and 221[cite: 3]
    - Third Schedule: Contains forms of oaths & affirmations; linked to Articles 75, 84, 99, 124, 146, 173, 188, and 219[cite: 3]
    - Fourth Schedule: Deals with allocation of seats in the Rajya Sabha to States and UTs; linked to Articles 4 and 80[cite: 3]
    - Fifth Schedule: Deals with provisions relating to the administration and control of Scheduled Areas and Scheduled Tribes; linked to Article 244[cite: 3]
    - Sixth Schedule: Provisions relating to the administration of tribal areas in the states of Assam, Meghalaya, Tripura, and Mizoram; linked to Articles 244 and 275[cite: 3]
  - Seventh to Twelfth Schedules[cite: 3]
    - Seventh Schedule: Divides powers into three legislative lists (linked to Article 246):[cite: 3]
      - Union List: Contains 98 subjects (originally 97)[cite: 3]
      - State List: Contains 59 subjects (originally 66)[cite: 3]
      - Concurrent List: Contains 52 subjects (originally 47)[cite: 3]
    - Eighth Schedule: Languages recognized by the Constitution; linked to Articles 344 and 351:[cite: 3]
      - Originally contained 14 languages; currently contains 22 languages[cite: 3]
      - Sindhi was added by the 21st Amendment, 1967[cite: 3]
      - Konkani, Manipuri, and Nepali were added by the 71st Amendment, 1992[cite: 3]
      - Bodo, Dogri, Maithili, and Santali were added by the 92nd Amendment, 2003[cite: 3]
      - Oriya was renamed to Odia by the 96th Amendment, 2011[cite: 3]
    - Ninth Schedule: Added by the 1st Constitutional Amendment, 1951 (linked to Article 31B):[cite: 3]
      - Protects land reforms and other acts from judicial review[cite: 3]
      - Originally contained 13 Acts; expanded to 282+ Acts[cite: 3]
      - I.R. Coelho Case (2007): SC ruled that laws added after April 24, 1973 are subject to judicial review[cite: 3]
    - Tenth Schedule: Provisions relating to disqualification of members on ground of defection (Anti-Defection Law):[cite: 3]
      - Added by the 52nd Constitutional Amendment Act, 1985[cite: 3]
      - Linked to Articles 102 and 191[cite: 3]
    - Eleventh Schedule: Specifies powers, authority, and responsibilities of Panchayats (linked to Article 243G):[cite: 3]
      - Contains 29 functional subjects[cite: 3]
      - Added by the 73rd Constitutional Amendment Act, 1992[cite: 3]
    - Twelfth Schedule: Specifies powers, authority, and responsibilities of Municipalities (linked to Article 243W):[cite: 3]
      - Contains 18 functional subjects[cite: 3]
      - Added by the 74th Constitutional Amendment Act, 1992[cite: 3]
- TABLE 3.4 – Sources of the Constitution & Borrowed Features
  - Domestic and British Sources[cite: 3]
    - Government of India Act, 1935: Federal scheme, office of Governor, judiciary, Public Service Commissions, Emergency Powers, and administrative details[cite: 3]
    - British Constitution: Parliamentary system, Rule of Law, legislative procedure, single citizenship, Cabinet system, prerogative writs, parliamentary privileges, and bicameralism[cite: 3]
  - American, Irish, and Canadian Sources[cite: 3]
    - US Constitution: Fundamental Rights, independence of judiciary, judicial review, impeachment of the President, removal of Supreme Court and High Court judges, and the post of Vice-President[cite: 3]
    - Irish Constitution: Directive Principles of State Policy (DPSPs), nomination of members to Rajya Sabha, and method of election of the President[cite: 3]
    - Canadian Constitution: Federation with a strong Centre, vesting of residuary powers in the Centre, appointment of state Governors by the Centre, and advisory jurisdiction of the Supreme Court[cite: 3]
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    - Australian Constitution: Concurrent List, freedom of trade, commerce, and intercourse, and joint sitting of the two Houses of Parliament[cite: 3]
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    - Soviet Constitution (USSR / Russia): Fundamental Duties and the ideals of justice (social, economic, and political) in the Preamble[cite: 3]
    - French Constitution: Republic and the ideals of liberty, equality, and fraternity in the Preamble[cite: 3]
    - South African Constitution: Procedure for amendment of the Constitution and election of members of Rajya Sabha[cite: 3]
    - Japanese Constitution: Concept of "procedure established by law"[cite: 3]